DEPARTMENT OF HEALTH AND HUMAN SERVICES

Public Health Service

42 CFR Part 100

Limitation on Federal Participation For Capital Expenditures; Policy Notice

AGENCY: Public Health Service, HHS.

ACTION: Interpretive Ruling.

SUMMARY: This Notice announces a change in an interpretive ruling under section 1122 of the Social Security Act which applies to the requirement under 42 CFR 100.106 that a State notify an applicant of certain actions within a specified period of time. This interpretive ruling is being revised to prevent the possibility that a finding of a Designated Planning Agency (DPA) or hearing officer be invalidated because of untimely delivery of decisions.

DATES: This new interpretive ruling is effective February 18, 1982 and will apply to each initial determination made by the Secretary under section 1122(d)(1) after that date.

FOR FURTHER INFORMATION CONTACT: James O'Donnell, Division of Regulatory Activities, Bureau of Health Planning, 3700 East-West Highway, Room 6–50, Hyattsville, Maryland 20782, Telephone Number (301) 436–6134.

SUPPLEMENTARY INFORMATION: Under section 1122 of the Social Security Act, the Secretary is authorized to enter into an agreement with a Governor of a State under which a health planning agency designated by the State (designated planning agency or DPA) reviews certain proposed capital expenditures by or on behalf of health care facilities. The purpose of this program is to assure that Federal funds under Titles XVIII (Medicare) and XIX (Medicaid) of the Social Security Act are not used to support unnecessary capital expenditures made by or on behalf of health care facilities. Under this agreement, a DPA will make a finding as to whether the proposal is consistent with the applicable plans, criteria, and standards and forward that finding to the Secretary. Under the section 1122 program regulations, the DPA and the State hearing officer, who upon appeal reviews a DPA's negative finding, are required to notify the applicant of certain actions within a specified period of time at three stages of the review process: (1) The DPA has 15 days from the date of receipt of an application to notify the applicant that additional information is required (42 CFR 100.106(a)(3)); (2) the DPA is required to provide written notification to the applicant within a specified period of time (varying from 60 to 90 days) as to whether the proposal is consistent with applicable plans, criteria, and standards (42 CFR 100.106(a)(4)); and (3) the hearing officer is required to notify the applicant of his decision within 45 days after the conclusion of the hearing (42 CFR 100.106(c)(3)).

The Secretary has previously interpreted those three notification provisions to require that the applicant receive actual notice of the action in question by the specified period. The Secretary is revising this interpretive ruling to provide that notice under these three provisions will be effective on the date the DPA or hearing officer mails to the applicant its finding on incompleteness or its finding as to conformity. The Secretary is revising this interpretive ruling to provide greater consistency with State certificate of need programs and to prevent the possibility that a finding of a DPA or hearing officer be invalidated because its mailed decision was not delivered within a reasonable period of time.

This revised interpretive rule will apply to each initial determination under section 1122 made after February 18, 1982. Under currently delegated authority, the Department's Regional Health Administrators make these initial determinations. In any reconsideration of a Regional Health Administrator's determination under section 1122, the interpretive rule in effect at the time the Regional Health Administrator's determination was made will apply.

Dated: February 9, 1982.

Robert Graham,

Acting Administrator.

[FR Doc. 82–4336 Filed 2–16–82; 8:45 am]

BILLING CODE 4160–01–M

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

43 CFR Public Land Order 6130

[OR–24318 (WASH)]

Washington; Revocation of Executive Order No. 9036

AGENCY: Bureau of Land Management, Interior.

ACTION: Public Land Order.

SUMMARY: This order revokes an Executive order which withdrew 41.60 acres of land as an Air Navigation Facility. This action will restore the land to such forms of disposition as may by law be made of national forest lands, including the mining and mineral leasing laws.

EFFECTIVE DATE: March 12, 1982.

FOR FURTHER INFORMATION CONTACT: Champ C. Vaughan, Jr., Oregon State Office; 503–231–6905.

By virtue of the authority vested in the Secretary of the Interior by Section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

1. Executive Order No. 9036 of January 22, 1942, which withdrew the following described lands for use by the Federal Aviation Administration as an air navigation facility is hereby revoked in its entirety:

Willamette Meridian

Wenatchee National Forest

T. 22 N., R. 11 E.,
Sec. 21, lot 3.

The area described contains 41.60 acres in Kittitas County.

2. At 10 a.m. on March 12, 1982, the land will be open to such forms of disposition as may by law be made of national forest lands, including location and entry under the United States mining laws and applications and offers under the mineral leasing laws.

Garrey E. Carruthers,

Assistant Secretary of the Interior.

February 5, 1982.

[FR Doc. 82–4301 Filed 2–17–82; 8:45 am]

BILLING CODE 4310–84–M

43 CFR Public Land Order 6151

[CA (5704)]

California; Revocation of Lighthouse Withdrawals

AGENCY: Bureau of Land Management, Interior

ACTION: Public Land Order.

SUMMARY: This order revokes two Executive orders which withdrew 54.25 acres of land and unsurveyed Lion Rock, located off the coast of California, for lighthouse purposes and will restore 43.52 acres and Lion Rock to the public land laws generally, including the mining and mineral leasing laws. The remaining 10.75 acres are privately owned and not subject to disposition under the public land laws.

EFFECTIVE DATE: March 16, 1982.

FOR FURTHER INFORMATION CONTACT: Marie M. Getsman, California State Office, 916–484–4431.

SUPPLEMENTARY INFORMATION:

By virtue of the authority vested in the Secretary of the Interior by Section 204